

**Berkeley Neighbors for Housing & Climate Action
2024 Candidate Questionnaire**

Candidate Name: Andy Katz

District / Office being sought: City Council District 6

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1. Berkeley's Housing Element lays out the city's plan for new housing construction through 2031, ensuring the city can meet its Regional Housing Needs Allocation (RHNA) of ~9,000 homes across a range of income levels.

The Housing Element commits Berkeley to a number of major policy changes in order to meet state requirements for affirmatively furthering fair housing, including citywide zoning for "missing middle" housing, a San Pablo Specific Plan, an updated Demolition Ordinance, and upzoning along North Shattuck, Solano, and College Ave, among other items.

What is your view on the Housing Element and these policies? What are the most important things we need to do to implement the City's Housing Element?

I have a long and deep history supporting new housing development in Berkeley and the Bay Area, starting with service on ZAB in 2001-2006, where I voted to approve thousands of units of new housing at a time when Berkeley had failed to provide a supportive environment for development in the prior decades. I worked closely with Mayor Bates on Measure R in 2010 to provide a voter mandate for upzoning the Downtown area for an additional 3,100 units, and opposed Measure R in 2014 that would have reversed this. As an EBMUD Director for 18 years, I have approached water supply planning as an infrastructure necessity for reliable growth within a resource-efficient urban footprint. I am proud to be supported by housing leaders like Jesse Arreguin, Tom Bates, and Loni Hancock.

Please discuss your ideas and priorities around:

- a. Missing Middle housing

I support allowing additional density along the lines of what is proposed in the middle housing ordinance, outside Fire Zones 2 and 3. The Fire Zone 2 boundary should be based on the science-based risk of structure-to-structure spread of fire, and evacuation risk.

- b. San Pablo specific plan

I support additional density along the lines of the the San Pablo specific plan, aligning with the Rapid service on line 72. While I was earning my Master of City Planning degree at UC Berkeley, I led the housing / upzoning analysis in a studio project that was presented to the Contra Costa County cities along the corridor, anticipating a follow-up

studio for Berkeley that would similarly replace auto-oriented uses with multi-family housing.

- c. Zoning for housing in high-resource neighborhoods like North Shattuck, Solano, and College Ave

I support zoning for housing along North Shattuck, Solano, and College Avenue, maintaining a mixed use retail component where appropriate to support new residents obtaining goods and services locally. Zoning along these corridors is an important part of how Berkeley's Housing Element supports affirmatively fair housing, as is the siting of the recently built Jordan Court affordable senior housing in District 6 on Spruce and Cedar.

2. Berkeley's Climate Action Plan sets forth a goal of 80% reduction in greenhouse gas (GHG) emissions by 2050. Today, the two major sources of GHG emissions in Berkeley are from gas-powered automobiles and natural gas used in buildings.

Berkeley has a variety of plans and programs intended to help address these emissions, including the Electric Mobility Roadmap and the Berkeley Existing Building Electrification Strategy. Other related efforts include the Bicycle Plan and Pedestrian Master Plan, as well as the City's now-defunct natural gas ban on new buildings. Upcoming policy initiatives include the Berkeley Building Electrification and Just Transition Pilot Program, Measure GG, the Bay Area Air Quality Management District's regional ban on new NOx-emitting appliances, and more.

What is your view on the Climate Action Plan and these strategies? What are the most important things we need to do to address greenhouse gas emissions?

I strongly support the Climate Action Plan, and fully funding each of these measures.

I worked as a nonprofit health advocate to pass AB 32, the California Renewable Portfolio Standard, and SB 375 through the California legislature and get implemented at CARB and the CPUC. I led Sierra Club California as its Chair when we needed to defend against Texas oil companies campaigning to repeal AB 32, and am the recipient of the Sierra Club International Award for my over a decade of pro bono work advocating for environmental integrity in the Paris Agreement and its implementation. I served on the steering committee to launch EBCE / AVA, and advocated for Berkeley to opt-up to 100% renewable electricity, and for EBCE to finance electrification and energy efficiency.

As an EBMUD Director, I piloted a similar program for sewer laterals that inspired the model for the Berkeley Building Electrification and Just Transition Pilot Program, and will work to further develop it and find an equitable, more broadly accepted finance mechanism to help accelerate the transition away from fossil fuels.

I strongly support more electric mobility access, and implementation of the Bicycle Plan and Pedestrian Master Plan so that walking and bicycling can be safer through more protective infrastructure.

Please discuss your ideas and priorities around how Berkeley can reduce emissions from transportation and buildings, and how we should align the climate transition with our other goals as a city.

In addition to funding and implementing the above-mentioned measures in the Climate Action Plan, Berkeley can reduce emissions from transportation by building more housing near transit, and improving the frequency of transit service. Berkeley should prioritize transit infrastructure with bus-only lanes on high-frequency corridors. I strongly support additional revenue measures for transit, and for decades have strategized with the transit advocacy community regarding how to do this. MTC must make more equitable financing decisions that support improved transit operations, and Berkeley's leadership should advocate for this. I prepared a detailed memo to the AC Transit Board urging – and justifying based on the data – for restoration of weekend service on lines 65 and 67, and not cutting service frequencies. That's why I'm endorsed by transit leaders like BART Director Rebecca Saltzman, AC Transit Directors Jean Walsh and Sarah Syed, transportation and housing policy advocate Jeff Hobson, and others.

3. In your opinion, what was the most important City Council vote on Berkeley's housing crisis in the past four years? Briefly describe the issue, what you think of the Council's decision, and what you would have done had you been on the Council. For incumbents, please describe why you voted the way you did, and what you think now about that vote.

Berkeley's housing crisis is multi-faceted, and there are many important votes covering different aspects of addressing the housing crisis, from increasing housing supply, to addressing homelessness interventions, to improving renter protection. Remarkably, some of the most impactful votes, like adoption of the Housing Element, and abolishing single-family zoning, were not as controversial as some votes or aspects of policy that relate to lower numbers of new housing units. I support the Housing Element, and support how the City Council has identified specific corridors for Area Plans to guide re-zoning for additional housing. With additional considerations regarding the Very High Fire Hazard Severity Zone, I also support Berkeley's end to single-family zoning, which preceded changes to state law, and now Berkeley has made conforming changes to comply with state law.

4. In your opinion, what was the most important climate or environmental issue faced by the Berkeley City Council in the last four years? Briefly describe the issue, what you think of the

Council's decision, and what you would have done had you been on the Council. For incumbents, please describe why you voted the way you did, and what you think now about that vote.

Berkeley's enactment of the Building Electrification Ordinance / Gas ban is the most important climate issue faced by the Berkeley City Council. While the ordinance was not upheld by the courts, this ordinance was consistent with a reasonable understanding of the law at the time, and the decision not to appeal to the United States Supreme Court was disappointing but also reasonable given the trend of the Court to selectively depart from long-accepted principles of legislative deference on findings of fact regarding health and safety and use of municipal police powers. There are hindsight reflections about how the ordinance could have avoided the adverse appellate ruling, but the positive part of the story is how Berkeley's ordinance inspired other ordinances around the country, and energized a decarbonization movement that is able to use other tools such as Air District authority, financial incentives, and delivery mechanisms for retrofits.

5. To achieve its RHNA goals, Berkeley must continue to build homes for all income levels. These new residents will need to travel within Berkeley. Greenhouse gas (GHG) emissions from transportation comprise roughly 60% of total emissions in Berkeley.

How would you ensure that Berkeley continues to reduce GHG emissions while adding new homes?

Berkeley's General Plan and Housing Element appropriately site new housing near high frequency transit, and the zoning ordinance allows reduction of parking to zero. I wrote the car-free housing overlay zone policy and upzoning for thousands of units in the Southside Plan, and as a ZAB member voted for the first modern car-free housing project in Berkeley, near Ashby BART. To reduce GHG emissions, high frequency transit must accompany new housing.

6. Walking and biking presents opportunities to help Berkeley residents reduce their GHG emissions, but safety concerns can be a major deterrent. Of the two competing street paving measures on the ballot this November, one of the major differences between the two is the approach to funding safety improvements for walking and biking.

Measure EE would provide safety funding only for traffic calming on bicycle boulevards and major pedestrian projects identified in the Pedestrian Plan. Measure FF would provide funding to implement safety measures throughout the city, based on existing plans.

What is your perspective on how we should address pedestrian and cyclist safety on our streets? What is your perspective on these two measures?

I support implementation of the Berkeley Bicycle Master Plan, and proven infrastructure designs that address pedestrian and cyclist safety. As a member of the Disaster and Fire Safety Commission, I supported the recommendation to the City Council to budget for a Program Manager within the Fire Department to ensure reliable and effective communication for project delivery and coordination with Fire Department engineering safety review.

I support Measure FF because this measure has more funding for street repair, and includes funding for safety improvements. I'm very disappointed that the proponents of both measures could not come to agreement on one measure, because we need this funding now, and cannot wait another two years, and need one of these measures to pass in 2024. I support the goal of Measure EE proponents to fund the infrastructure needed to achieve an average PCI score of 70.

7. Berkeley has a long history of using zoning, restrictive covenants and redlining to achieve racial and economic segregation. This history continues to shape Berkeley today.

Recent research by the Turner Center at UC Berkeley suggests that inclusionary zoning requirements, which mandate on-site restricted affordable housing in new developments, may have the effect of reducing overall housing construction, including the production of affordable units. However, on-site affordable housing can also be an effective tool for desegregating neighborhoods.

What is your perspective on how Berkeley should use inclusionary zoning requirements, versus other affordable housing development options (such as in-lieu fees)?

Affordability requirements should be adaptively managed so Berkeley can comply with all categories of the RHNA – funding a reasonable share of new affordable housing, but carefully avoiding a fee level that discourages new development. Especially in this high-interest rate environment, the city should allow deferral of fees until occupancy. Inclusionary zoning costs should be roughly proportionate to in-lieu fee costs to resemble the housing services that the fee is covering. The policy benefits of mixed-income buildings versus leveraging more units through the affordable housing trust fund is an evolving debate that should continue to be informed by studies of resident experiences, and opportunities through alternative funding sources in Berkeley such as other tax measures that fund affordable housing.

8. Many of the highest income neighborhoods in Berkeley are also in the Hillside Overlay, portions of which are in the California Very High Fire Hazard Severity Zone (CalFire VHFHSZ). How should we balance fire risk with affirmatively furthering fair housing?

It is unsafe to re-zone for high amounts of multi-family housing where there is a science-based risk of structure-to-structure spread of fire, and evacuation risk. We should balance affirmatively furthering fair housing by examining opportunities for the Small

Sites Program within the VHFHSZ and other assistance programs that enable low- and moderate- income households to live in areas that are not part of the middle housing re-zoning.